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Submitter Information

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General Comment

It is our firm belief that to be truly effective, any Action Plan seeking to promote AI innovation should:

- Require transparency and accountability from AI developers to ensure their legal compliance, support accuracy, and reduce the potential for erroneous output; and
- Respect existing intellectual property protections and require the use of proper licensing for copyrighted materials in the training of AI language models.

Please find our complete response attached.

Attachments

Wiley Response to US AI Action Plan

March 15, 2025

Subject: Development of a U.S. Artificial Intelligence Action Plan

We appreciate this important mechanism to provide our feedback in response to the National Science Foundation's (NSF) and Office of Science and Technology Policy's (OSTP) request for information (RFI) regarding the Development of an Artificial Intelligence Action Plan. This process represents a critical step in creating a balanced framework that harnesses the benefits of AI while ensuring robust copyright protections for the creative and research ecosystems.

Founded in 1807, Wiley is one of the world's largest publishers and a global leader in research and learning. As stewards of knowledge and information for over two centuries, we see artificial intelligence as a transformative force capable of driving innovation, unlocking new opportunities, and accelerating progress across industries. When developed and applied responsibly, AI has the potential to enhance efficiency, empower creators, and deliver significant value to businesses and society. By fostering collaboration between stakeholders, we can ensure AI becomes a catalyst for American growth and discovery.

It is our firm belief that to be truly effective, any Action Plan seeking to promote AI innovation should:

- Require transparency and accountability from AI developers to ensure their legal compliance, support accuracy, and reduce the potential for erroneous output; and
- Respect existing intellectual property protections and require the use of proper licensing for copyrighted materials in the training of AI language models.

Any framework should uphold intellectual property rights, transparency, and fair compensation to reinforce the foundational principles that drive innovation and creativity in the United States. By promoting responsible AI practices that align with these values, policymakers and industry leaders can adopt a risk-based approach that balances technological innovation with a respect for IP and copyright. Establishing mutually beneficial licensing arrangements, fostering collaboration to stay ahead of AI advancements, and proactively managing risks while seizing opportunities will be essential to sustaining a thriving and competitive AI ecosystem in America. We look forward to working with the United States on these rapidly emergent issues.

Please find our complete response provided on the following page. We remain available for any further clarification or discussion as needed.

Sincerely,

Deirdre Silver
Executive Vice President, General Counsel
Wiley

Disclosure

Transparency is essential for a responsible and well-functioning AI ecosystem. The United States should establish clear disclosure requirements for AI developers regarding the sources used to train AI models. Without proper oversight, AI systems risk being trained on unauthorized, low-quality, or infringing content, undermining both intellectual property rights and public trust in AI-generated outputs. Some AI models scrape copyrighted materials without permission, generate near-verbatim outputs that replicate original works, and mislead users by directing them to piracy sites or producing inaccurate citations. These issues complicate content integrity and intellectual property protections.

AI developers should be required to:

- **Disclose training datasets** to provide visibility into how copyrighted materials contribute to AI model development;
- **Identify copyrighted works used in training**, including digital identifiers (e.g., DOI, ISBN) and the legal basis for use (e.g., commercial license);
- **Ensure compliance with copyright law**, preventing developers from bypassing established licensing obligations and legal rights reservation mechanisms through opaque or unverifiable datasets; and
- **Implement auditing mechanisms** to track and disclose training data sources, including for downstream providers, ensuring transparency, scientific integrity, and security in content usage throughout the value chain.

Rightsholders should receive timely notification of unauthorized use, with clear pathways for addressing concerns. AI-generated content may incorporate copyrighted materials at various stages, including inference and retrieval-augmented generation (RAG). Without clear safeguards, AI-generated derivatives could be widely distributed, diluting the value of original works and creating uncertainty regarding ownership and authorship.

Transparency measures could align with existing best practices, such as the EU General-Purpose AI Code of Practice, which seeks to balance disclosure with business confidentiality. However, any disclosure requirements should be enforceable, ensuring that AI developers provide meaningful and consistent information.

Attribution

Attribution should be a mandatory feature of AI outputs, especially when AI-generated content mirrors or substantially relies on copyrighted materials. AI developers should be required to ensure that AI-generated outputs reflect accurate attribution and content provenance by:

- **Correctly citing original sources**, particularly in research and journalism, to reinforce scientific integrity;

- **Recognizing authorship** to ensure that creators receive proper credit for their contributions; and
- **Maintaining a clear record** of how content is sourced, transformed, and repurposed to build trust in AI systems.

Intellectual Property & Copyright Protection

AI's rapid expansion presents opportunities but also raises challenges for creative industries, journalism, and research integrity. The United States should ensure that existing copyright law continues to protect publishers, authors, and other content creators. A balanced approach to AI development should:

- **Ensure compliance with copyright law**, preventing developers from bypassing established licensing obligations and legal rights reservation mechanisms through opaque or unverifiable dataset;
- **Encourage AI dataset transparency**, requiring public reporting on training data sources;
- **Support licensing requirements for AI training**, ensuring AI developers obtain consent before using copyrighted works and allowing rightsholders to control how their content is used;
- **Develop standards for and implement provenance tracking**, enabling content creators to verify when their works are incorporated into AI models and enabling content attribution and protecting against misrepresentation; and
- **Utilize existing copyright enforcement mechanisms**, ensuring AI developers operate within the bounds of intellectual property law.

AI Training vs. Text and Data Mining

The United States should distinguish between text and data mining (TDM) and AI training, particularly in relation to intellectual property protections.

- **TDM analyzes existing content to extract patterns**, trends, or relationships, typically producing insights without generating new works.
- **AI training ingests copyrighted materials to generate new works**, enabling AI-generated outputs that may be verbatim or substantially similar to source content.

Applying TDM exceptions to AI training is inappropriate. AI models do not merely analyze content—they absorb and reuse it, often producing outputs that replicate protected works. A licensing-based framework would help ensure that intellectual property protections remain intact and that AI developers and rightsholders can engage in a structured, fair system for content use.

Robust Marketplace for Licensure

A licensing-based framework, rather than an exception allowing AI developers to train on copyrighted content without permission, is one important approach for ensuring accountability, transparency, and fairness for rightsholders.

U.S. copyright law does not provide blanket permission for AI training under fair use. The February 2025 Thomson Reuters v. Ross Intelligence ruling reinforced this, granting summary judgment against unauthorized AI training on copyrighted materials. A licensing framework offers a clear, enforceable approach that ensures creators are compensated when their works are used in AI training; provides legal certainty for AI developers, reducing litigation risks; and enhances transparency by requiring AI developers to disclose training datasets, licensing terms, and the legal basis for content use.

Under a licensing system, AI models can still access high-quality, curated datasets—but only with rightsholder consent. AI developers should be required to:

- **Publicly disclose** training datasets to allow verification;
- **Track copyrighted materials** used at various AI stages, including inference and retrieval-augmented generation (RAG); and
- **Implement clear attribution standards**, ensuring proper recognition where possible.

Requiring rightsholders to opt out of AI training places the burden on creators, rather than on AI developers who profit from their works. A framework based on explicit licensing would create a more predictable system that recognizes the value of copyrighted materials and bolsters American innovation.

Conclusion

Wiley is committed to a future in which the development and deployment of AI is encouraged and embraced, while also supported by legal guardrails that incentivize and support the creation and curation of trustworthy research and learning material. Many of those legal guardrails already exist (e.g., licensing), and others need to be refined (e.g., transparency). Wiley's ultimate mission is to serve authors, researchers, learners, and professionals by enabling them to consume and widely disseminate information and knowledge in ways that benefit the world. We must ensure that people will not be put at risk under any circumstances, and that the quality and integrity of the works we publish and the valuable services that journals and societies provide are never compromised.

As with any new technology, we must be both visionary and vigilant. We look forward to working with the United States on these rapidly emergent issues. Public-private partnerships—leveraging the collective expertise and entrepreneurial spirit of the scientific ecosystem, including publishers—are essential to charting a balanced path forward in which technological progress and the IP-enabled creativity that fuels it function and flourish together.